

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr. Department Advocate's Office, October 7, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28315 against Sergeant Carlos Pappagallo, Tax Registry No. 952090. This case was conferenced on September 26, 2024, before Assistant Deputy Commissioner of Trials, Vanessa Facio-Lince, who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of ten (10) vacation days. Charges and Specifications will be dismissed for plea purposes.

Andre Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28315
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, PAPPAGALLO	FIRST CARLOS	M.I. A	COMMAND INTELL-CRIM. SECT. (DORMANT)
SHIELD NO. 5121	TAX REGISTRY NO. 952090	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Carlos PAPPAGALLO, on or about February 19, 2022, at approximately 2133, while assigned to 024 PCT and on duty, in the vicinity of Central Park West and West 108th Street, New York County, wrongfully used force, in that, they applied weight and force around § 87(2)(b) neck and shoulder, with an open hand while § 87(2)(b) was on the ground.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Sergeant Carlos PAPPAGALLO, on or about September 1, 2022, at approximately 2133, while assigned to 024 PCT, provided an inaccurate statement to CCRB, in that, during their interview and after being shown the body worn camera footage, when asked whether they recalled whether their hand made any contact with § 87(2)(b) neck area, they responded that they did not recall. Then they were shown the segment again and they were asked to describe where their hand was, Sgt. Pappagallo responded, "My hand was around his ear and his cheek. "Right after that, he was asked, "Was it in contact at all with his neck?" Sgt. Pappagallo responded, "No. It does not appear so to me."	DISMISSED	

DC [Signature]
FIRST DEPUTY COMMISSIONER

10/30/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

[Signature]
POLICE COMMISSIONER

11/8/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner October 30, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28315 against Sergeant Carlos Pappagallo, Tax No. 952090, with the recommendation that the Charges and Specifications against Sergeant Pappagallo be dismissed and that Sergeant Pappagallo receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days; I concur. **RECOMMEND APPROVAL.**

TIK/jpc



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

NOV 08 2024



THOMAS G. DONLON
POLICE COMMISSIONER